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• *By the Students*

• *Of the Students*

• *For the Students*

4TH SEMESTER LAND LAW & CEILING LAWS NOTES

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LAND LAWS INCLUDING CEILING LAWS AND OTHER LOCAL LAWS

WEST BENGAL LAND REFORMS ACT, 1955

Q. Who is Raiyat? Can a raiyat change the area, character or the mode of use in his land? Discuss the rights of Raiyat in respect of his plot of land.

As Per **Section 2(10)** of the *West Bengal Land Reforms Act, 1955* Raiyat means a person or an institution holding land for any of the purposes of the whatsoever.

The term "person" shall include any company or association body of individuals whether incorporated or not. Section 3 (42) of the General Clauses Act.

The term "Institution" would include religious charitable or other institution holding land.

A land held for non-agricultural purpose by a person is a raiyat - ***Falakata Industries Ltd. V. Addl. District Magistrate, 2001 (1) CLT (HC) 226***

There cannot be any doubt that an idol created under a trust be it private or public in nature is a juristic person and is capable of holding property. Once the trust or the person becomes Raiyat for the purpose of the said Act, the said trust or idol is capable of holding property. For the purpose of ceiling area, therefore the idol cannot be divested of its properties and the author or his successors-in-interest cannot be deemed to be the owner of the property. - ***Paschimanga Bhumiijibi Krishak Samity v. State of West Bengal, 1996 (II) CHN 212; 1996 (2) CLT (HC) 183.***

A raiyat may also hold apart from agricultural and/or homestead land, land which is being used for non-agricultural purposes. - ***Prafulla Kumar Maity v. Amal Krishna Mishra, 1997 (II) CHN 20.***

The Deity being a raiyat within a meaning of Section 2 (10) is entitled to retain lands in accordance with the provisions of clause (e) of Section 14M(1), namely seven standard hectares. – ***Sri Sriishwar Saradaiya DurgaThakurani v. Revenue Officer, 1981 (1) CLJ 231; 1981 (1) CHN 178***

A deity of a religious endowment answers the definition of raiyat given in section 2(10) of the West Bengal Land Reforms Act, 1955 – Ishwar Dadhibahan Jew v. State of West Bengal, 1998 (I) CHN 383; 1998 (1) CLJ 490.

Division Bench of Calcutta High Court held that the right of the petitioner society to hold land is governed by the ceiling limit prescribed under Section 14M as the benefit given under section 14Q(1) is taken away by the virtue of the Amendment Act of 2003 accepting the submission of the learned advocate of the State that Co-operative society comes within the sweep of the definition of raiyat and the ceiling limit of a raiyat has been determined under Section 14M and Section 14M(1)(e) covers all the categories

including a Co-operative- Mahesh Housing CO-operative Society v. State of West Bengal, 2004 (1) CHN 10.

Can a raiyat change the area, character or in the mode of use in his land

Section 4B enjoins upon every raiyat holding any land to maintain and preserve such land in such manner that its area is not diminished or its character is not changed or the land is not converted for any purpose other than the purpose for which it was settled or previously held except with the previous order in writing of the collector under Section 4C is necessary. The proviso of Section 4B however, gives the power to the raiyat to plant and grow trees on any land held by him within the ceiling area applicable to him and to his family for which no previous order of the Collector under section 4C is necessary. However, the raiyat has got no right to plant and grow trees on any land cultivated by the Bargadar. The second proviso of Section 4B states that Section 4B shall not apply to the diminishing in area or change in character of any land or conversion of any land for any purpose other than the purpose for which it was settled or previously held if such diminution or change of character or conversion was made in accordance with the provisions of any law for the time being in force.

Section 4C of the Land Reforms Act, 1955 lays down the provisions for the permission for change of area, character or use of land.

A raiyat holding any land may apply to the Collector for change of area or character of such land for any purpose other than the purpose for which it was settled.

On receipt of such application, the Collector may after making enquiry and giving the applicant an opportunity of being heard by order in writing either reject the application or direct such change, conversion and alteration on such terms and conditions as may be prescribed.

It is provided that where the application relates to permission change, conversion or alteration of any plot of land having water body of any description or size, the Collector shall not make such order unless he has made a prior consultation in writing with such appropriate Department of the State Government.

The order of the Collector regarding change, conversion or alteration shall specify the date from which such change, conversion or alteration shall take place.

Order refusing conversion of land by the Collector is appealable under section 54 of the Land Reforms Act. - ***Ranjit Kumar Bagchi v. State of West Bengal, 2005 (1) CLJ 351; 2005 (4) CHN 396.***

A copy of the order passed by the Collector directing change, conversion or alteration, if any or in an appeal there from shall be forwarded to the Revenue officer.

Such Revenue Officer shall incorporate in the record-of rights changes effected by such order and revise the record-of-rights in accordance with such order.

Where the approval of the appropriate Department of the State Government or the local authority in respect of any scheme or the permission of the appropriate Department of the State Government or the

local authority in respect of construction buildings or any other permission to conduct any business carrying on any activity. -

(A) Involves change of area of any plot of land or character or conversion of the same.

(B) Amounts to using of any plot of land having any water body of any description or size in a manner that degrade, destroys directly or indirectly such water-body;

No such approval or permission of the appropriate Department of the State Government or the local authority shall be made unless the order of the Collector directing change, conversion or alteration of such plot of land or plot of land having water body of any description or size, as the case may be is obtained.

Where any plot of land has been changed or converted or altered in violation of the Section 4C, if the Collector, on his own motion or on receiving information, is of the opinion that it is necessary so to do in public interest, he may make an order directing a raiyat or a lessee for restoration of the original character of the concerned land within a specified time.

On receipt of the order, the raiyat or the lessee shall restore the original character of the plot of land at his own cost within such time as may be order by the Collector.

If the raiyat fails to comply with the order, the Collector may take action for restoring the original character of such plot of land and realise the cost of restoration from raiyat.

If the raiyat or lessee fails to pay the cost of restoration, the Collector may realise the cost as a public demand in accordance with the provisions of the Bengal Public Demands Recovery Act, 1913.

Any change, conversion or alteration in the area character or mode of use of land except in accordance with the provisions of Section 4C, or any violation of the order of the Collector under sub section 5 of Section 4C shall be a cognizable and non-bailable offence and shall be punishable with imprisonment for a term which may extend to three years or with fine which may extend to fifty thousand rupees or with both.

The Petitioners who were owners of orchards comprising mostly mango trees which had become unproductive due to old age. The Petitioners wanted to cut down such unproductive trees and replace the same with the new trees to get higher yields and returns. The authorities of the Government prevented the Petitioner from felling such trees on the allegation of violation of the provisions of sections 4B, 4C and 4D of the West Bengal Land Reforms Act, 1955. High Court held that the provisions of the proviso of section 4B of the Act to the effect that a Raiyat can plant and grow trees on his land without obtaining any permission from the Collector of the District under Section 4C thereof does not mean that for felling such trees such permission will be required. - **Biswanath Kumar and ors. V. State of West Bengal and Ors., 1996 (II) CHN 407; 1997 (2) CLJ 78**

The Division Bench of the Calcutta High Court has made it clear that the raiyat is required to maintain and preserve the land without changing and converting the land into any other kind of land. So, when

the land is recorded as Beel Mach Chas i.e., tank fishery, the raiyat by gradually filling the tank cannot convert it into a high land. Such conversion being illegal without the permission of the collector under section 4C, he cannot apply for sanction of building plan for the purpose of constructing the building thereupon. - State of West Bengal v. Sanjeevani Projects (P) Ltd., 2006 (1) CHN 241 (DB).

Rights of a raiyat in respect of his plot of land

Section 4 of the West Bengal Land Reforms Act, 1955 lays down the provisions as to the rights of raiyat in respect of land.

Sub-section (2) of section 4 of the West Bengal Land Reforms Act makes an expressed reservation regarding the sub-soil rights which provides that the ownership of the Raiyat will not entitle him to the sub soil rights.

Sub Section (2A) was also introduced by way of Amendment Act of 1965 which had been substituted by the Amendment Act, 1966 imposing a certain restrictions upon raiyats with regard to quarrying of sands, digging or using earth for the manufacture of bricks and tiles.

Clauses (a) and (b) of Sub-section (2A) of section 4 prohibit a raiyat from quarrying sand and excavating or using earth or clay for the manufacture of bricks or tiles either for himself or through others from his holding for any purpose other than his own except with previous permission of the State Government.

It has been held that when in course of excavating a tank sand comes out, as they must in almost all cases from the surface of the earth when the earth is dug for the purpose of excavating a tank, then that does not amount to quarrying of sand and in such a case the person cannot be held guilty of contravening the provision of Section 2A of Section 4. - **Rabindra Nath Singha Roy v. Divisional Commissioner, Chinsurah, AIR 1972 Cal 477; 76 CWN 378**

Section 4D prescribes the penalties to be imposed on a raiyat for the violation of Section 4C of the Act.

Land gained by recess of river or sea: Section 12 has declared that any land gained by gradual accession to a plot of land whether from the recess of the river or of the sea shall vest in the State Government and the raiyat who holds the said plot of land should not be entitled to retain as such land as accretion thereto.

No right to sub-soil: A raiyat under the West Bengal Land Reforms Act is recognised to be the owner of his plot of land, but the raiyat has not been given the right to the sub-soil of his plot of land.

Right to Mortgage: Section 7 of the Act provides that a raiyat can create a mortgage by deposit of title deeds only in favour of financial institutions specified in clause C of Sub Section (1) of Section 7 and for the purpose of obtaining loans or financial assistance in respect of specified activities i.e.,

For development of land comprised in the plot of land of such raiyat.

For the improvement of any agricultural production (including horticulture or fishery). For the development and improvement of any plantation.

For the establishment and development of any industry, livestock breeding, dairy, poultry farming, commercial unit, educational center, health center, public recreation centre and research centre upon such land.

For the promotion and holding of sports or cultural or philanthropical activities upon such land.

For the construction of any housing estate for bonafide residential purpose or any building for providing accommodation for any office upon such land.

For such other activities as the State Government may by notification in the official gazette specify.

Q. Discuss the right of purchase by a co-sharer or contiguous tenant in respect of a portion or share of a plot of land of raiyat . Is there any exemption? If so, discuss.

Co-sharer of a raiyat in a plot of land: Under sub-section (6) of section 2 of the West Bengal Land Reforms Act, "Co-sharer of a raiyat in a plot of land" means a person other than the raiyat, who has an undemarcated interest in the plot of land along with the raiyat.

Right of purchase by co-sharer or contiguous tenant

Section 8 of the West Bengal Land Reforms Act, 1955 speaks of the right of purchase by co-sharer or contiguous tenant in respect of a portion or share of a plot of land.

If a portion or share of a plot of land of a raiyat is transferred to any person other than a co-sharer of a raiyat in the plot of land, the bargadar in the plot of land may, within three months of the date of such transfer, or any co-sharer of a raiyat in the plot of land may, within three months of the service of the notice as given under the provision of sub-section (5) of section 5 of this Act, or any raiyat possessing land adjoining such plot of land may, within four months of the date of such transfer, apply to the Munsif having territorial jurisdiction, for the purpose of transfer of the said portion or share of the plot of land to him.

Such transfer shall be subject to the limit stated in section 14 M of the WBLR Act on deposit of the consideration money together with 3 further sum of ten percent of that amount.

It is provided that if the bargadar in the plot of land, a co-sharer of a raiyat in a plot of land and a raiyat possessing land adjoining such plot of land apply for such transfer, the bargadar shall have the prior right to have such portion or share of the plot of land.

It is further provided that where the bargadar does not apply for such transfer and a co-sharer of a raiyat in a plot of land and a raiyat possessing land adjoining such plot of land both apply for such transfer, the former shall have the prior right to have such portion or share of the plot of land.

It is also provided that as amongst the raiyats possessing lands adjoining such plot of land, the preference shall be given to the raiyat having the longest common boundary with the land transferred.

Nothing in the provision under this section 8 shall apply to. -

(a) a transfer by exchange or by partition

(b) a transfer by bequest or gift or heba-bill-ewaz

(c) a mortgage stated in section 7 of this Act

(d) a transfer for charitable or religious purposes or both without reservation of any pecuniary benefit for any individual

(e) a transfer of land in favour of a bargadar, in respect of such land if after such transfer, the transferee holds as a raiyat land not exceeding one acre or 0.4047 hectare in area in the aggregate.

Every application pending before a Revenue Officer at the commencement of section 7 of the West Bengal Land Reforms (Amendment) Act, 1972 shall, on such commencement, stand transferred to, and be disposed of by the Munsif having jurisdiction in relation to the area in which the land is situated.

Under section 8, speaks about right of pre-emption that means who gets priority to purchase a portion or share of a plot of land of a raiyat if the raiyat intends to sell it.

There are three persons, the bargadar in the plot of land, co-sharer of a raiyat in the plot of land and the contiguous tenant (the raiyat possessing land adjoining such plot of land) to whom this section stage by stage gives priority to have such portion or share of plot of Land. The bargadar in the plot of land gets the first preference; the co-sharer of a raiyat in the plot of land, the second and contiguous tenant (the raiyat possessing land adjoining plot of land), the third.

The above bargadar or co-sharer of at raiyat or contiguous tenant who intends to claim right of pre-emption is required to apply the Munsif having territorial jurisdiction for purchase of said portion or share of the plot of land and shall deposit consideration money together with a further sum of ten percent of that amount.

The portion or share of the plot of land intended to purchase shall not be in excess of ceiling area under section 14M.

But right of pre-emption shall not be applicable to a transfer by exchange of a portion or share of plot of land or by partition or a transfer by bequest or gift or heba-bill-ewaz or by a mortgage under section 7 or a transfer for a charitable or religious purposes or a transfer of land in favour of a bargadar.

In the context of right of pre-emption whether stranger purchaser having adjoining land, it was held in **Narayan Chandra Ghosh v. Sanat Kumar AIR 1975 Cal 290** that the transferee against whose transfer the right of pre-emption arose cannot apply for the holding portion or share and as such a transferee

cannot claim right of pre-emption as against himself even though he possesses the land adjoining the transferred land.

The right under this section is virtually a right to veto a transaction in favour of a stranger and to force substitution of himself for another transferee. **HiruSepai v. Sultan Sepai, AIR 1975 Cal. I; 1975 (I) CLJ.**

If the entire holding is sold the question of pre-emption will not arise. When the entire holding is sold pre-emption by adjoining owner is not permissible. **Gadadhar Ghosh v. Srithidhar Ghosh, 2000 (2) CLJ 423.**

Section 8(1) provides that on deposit of consideration money an application for pre-emption can be made. So, the word transfer occurred in Section 8 (1) of the Act must be a transfer for consideration of money and not a transfer for any other consideration. - **Kutubuddin Ahammed v. Kashim Ali, 76 CWN 57; AIR 1972 Cal 293.**

It is not necessary for pre-emption that the applicant needs to be the sole owner of the adjoining property as even a co-sharer can apply for pre-emption.- **Smt. Bula Kundu v. Sri Nirmal Kumar Kundu&Anr., 2000 CWN 776; 2000 (II) CLT (Cal) 221.**

Q. State the ceiling area, i.e. the extent of land which a raiyat is entitled to hold under the West Bengal Land Reforms Act 1955.

Section 14M of the West Bengal Land Reforms Act, 1955 lays down the ceiling area of land for the raiyat.

The ceiling area shall be. —

- (a) In the case of a raiyat, who is an adult unmarried person, 2.50 standard hectares ;
- (b) In the case of a raiyat, who is the sole surviving member of a family, 2.50 standard hectares.
- (c) In the case of a raiyat, having a family consisting of two or more but not more than five members, 5.00 standard hectares;
- (d) In the case of a raiyat having a family consisting of more than five members, 5.00 standard hectares, plus 0.50 standard hectare for each member in excess of five, however, that the aggregate of the ceiling area for such raiyat shall not exceed 7.00 standard hectares;
- (e) In the case of any other raiyat, 7.00 standard hectares. -

Where in the family of a raiyat, there are more raiyats than one, the ceiling area for the raiyat Together with the Ceiling area for the other raiyats, in the family shall not exceed.—

- (i) Where the number of members of such family does not exceed five, 5.00 standard hectares;

(ii) Where such number of members exceeds five, 5.00 standard hectares, plus 0.50 standard hectare for each member in excess of five, however, that the aggregate of the ceiling area shall not exceed 7.00 standard hectares.

All the lands owned individually by the members of a family or jointly by some or all the members of such family shall be deemed to be owned by the raiyats in the family.

In determining of the extent of land owned by the raiyats in a family or the sole surviving member of a family or an adult unmarried person, the share of such raiyat or raiyats, or such sole surviving member, or such adult unmarried person, as the case may be, in the lands owned by a co-operative society, company, co-operative farming society, Hindu undivided family or a firm, shall be taken into account.

*The Supreme Court while considering Bombay Tenancy and Agriculture Act, 1948 arrived at the irresistible conclusion that the Act postulates that the land within the Bombay area is required to be taken into computation for the purpose of determining the ceiling area. It will, therefore, be impermissible to take into account any land held by the first respondent in the State of Karnataka. - **Tatoba Bhau Savagave v. Vasantrao Dhindiraj Deshpande, 2001 (8) SCC 501.***

The lands owned by a trust or endowment other than that of a public nature, shall be deemed to be the lands owned by the author of the trust or the endowment.

Such author of the trust or the endowment shall be deemed to be a raiyat under the provisions of this Act of 1955.

The expression "the author of trust or endowment" includes the successors-in-interest of the author of such trust or the endowment.

A trust or an institution of public nature exclusively for a charitable or religious purpose or both shall be deemed to be a raiyat under this Act of 1955 and shall be entitled to retain lands not exceeding 7.00 standard hectares, notwithstanding the number of its centres or branches in the State.

*Where a property is dedicated for the worship of family idol, it is a private and not a public endowment, as the persons who are entitled to worship at the shrine of the deity can only be the members of the family and that is an ascertained group of individuals. But where the beneficiaries are not members of a family or a specified individual, then the endowment can only be regarded as public intended to benefit the general body of worshippers - **Deoki Nandan v. Murlidhar, AIR 1957 SC 133.***

*The Private temple in course of time depending on the various facts and developments may gradually acquire the nature of public temple. - **Taki Venkata Ratnak v. Deputy Commissioner, endowments and Ors., 2001 (7) SCC 106***

Here, the term "ceiling area" used in section 14M means the extent of land which a raiyat shall be entitled to own [Section 14K(a)]

The term "standard hectare" means in relation to an agricultural land, an extent of land equivalent to —

(i) 1.00 hectare in an irrigated area,

(ii) 1.40 hectare in any other area [section 14K (f)]

*In the context of the question as to the constitutional validity of sub-section (6) of section 14M, it was urged before the learned Judge in **Paschim Banga Bhumijibi Sangha v. State of West Bengal, (1992) 1 CHN 496** that an institution of certain Mission having number of branches are doing its activities. It would not be possible for it to run activities if it retained only seven hectares of land .It was observed by the learned Judge that there is special provision in the Act for exceptional case where the law does not impose any ceiling on them due to public good.*

Q. Who is a Bargadar? How should the shares of the product be divided between Raiyat and Bargadar?

Under **Sub-section (2) of section 2** of the *West Bengal Land Reforms Act*, "Bargadar" means a person who under the system generally known as adhi, barga or bhag cultivates the land of another person on condition of delivering a share of the produce of Such land to that person; and includes a person who under the system generally known as kisan or by any other description cultivates the land of another person on condition of receiving a share of the produce of such land from that person.

The term "bargadar" does not include a person who is related to the owner of the land — as wife or husband or child or grandchild or parent or grandparent or brother or sister or brother's son or brother's daughter, or sister's son or sister's daughter or daughters husband, or son's wife or wife's brother or wife's sister, or husband's brother, or brother's wife.

As per Explanation to sub-section (2) of section 2, a bargadar shall continue to be a bargadar until cultivation by him is lawfully terminated under this Act.

Person cultivating land of another person shall be presumed to be a "bargadar" in certain cases - **section 21 B.**

The word "cultivates", in the definition quoted cannot be ignored and it certainly contemplates some self-cultivation by the bargadar and an undertaking to get the land cultivated as distinct from an undertaking to cultivate the land will not normally or at least in the absence of proper context be sufficient for the purpose.

Hari Kinkar Samanta v. Deb Kumar Chowdhury, 1984 (2) CLJ 294.

*Merely because some persons claim to be cultivating the property it will not be sufficient to record them as bargadars. To be recorded as bargadars they must prove that bhag produce is being delivered to the owners of the land. In the absence of any such evidence the B.L. & L.R.O must come to a just decision after considering all ingredients which are required to be proved to enable the petitioners to be recorded as bargadars. - **Kartick Bagdi v. Bidyut Kr. Roy,, 2001 CWN 33 : 2000 (2) CLJ 209.***

Members of the family cannot be a bargadar. A step son cannot inherit the property of step mother under the Mohammedan Law but continues to be member of his family Inspite of having no right of inheritance. Under the Mohammedan Law the heirs of the deceased son do not inherit from their paternal grandfather but they do not cease to be the members of his family. The law of inheritance has nothing to do with family relationships. Members of the family are barred under Section 21B of this Act from claiming any barga right.
- **A. H. Middy v. State of West Bengal, 2000 (I) CHN 14.**

Share of Produce Payable By A Bargadar.

Section 16 of the West Bengal Land Reforms Act, 1955 provides for the share of produce payable by a bargadar.

The produce of any land cultivated by a bargadar shall be divided as between the bargadar and the person whose land he cultivates.

(a) In the proportion of 50:50 in a case where plough, cattle, manure and seeds necessary for cultivation are supplied by the person owing the land;

(b) In the proportion of 75:25, in all other Cases,

The bargadar shall tender within the prescribed period to the person whose land he cultivates the share of the produce due to such person.

Where any share of produce tendered is accepted by the person whose land is cultivated by the bargadar, each party shall give to the other a receipt, in such a form, as may be prescribed, for the quantity of the produce received by him.

If the person whose land is cultivated by the bargadar refuses to accept the share of the produce tendered to him by the bargadar, or to give receipt, the bargadar may deposit such share of the produce with such officer or authority as may be prescribed.

Such deposit shall discharge the bargadar from his obligation to deliver the share of the produce to the person whose land he cultivates.

Where a deposit has been made, the prescribed officer or authority shall. —

(a) Give to the bargadar a receipt in such a form as may be prescribed stating the quantity of the Produce and the particulars of the person for whom the produce has been deposited; and

(b) Give intimation of such deposit to the person for whom the produce is deposited.

Where the produce is deposited and the person for Whom the produce has been deposited does not take delivery of such produce within fifteen days from the date of service on him of the intimation of Such deposit, the officer or authority may sell such produce and deposit the proceeds of such sale after deducting the cost of conducting the sale, in the treasury, in the revenue deposit to the credit of the person for whom the produce has been deposited.

Such officer or authority shall give intimation to such person for such deposit. The bargadar shall store or thresh the produce. -

- (a) At such place as may be agreed upon between him and the person whose land he cultivates; or
- (b) Where there is any disagreement between them, at such place as may be fixed by him after giving notice in writing and served, in the prescribed manner, to the person whose land he cultivates.

It is provided that the person whose land is cultivated by the bargadar may enter the place where the produce has been stored or is being threshed for the purpose of inspecting the storage or threshing of the produce.

The person whose land is cultivated by the bargadar may enter the place at any time during the storage or threshing of the produce.

Merely because the officer or authority appointed under section 18(1) permits a person to make the deposit of paddy under section 16(4) he or it does not adjudicate the question as to whether the person depositing is really the bargadar or not. The effect of such deposit is to discharge the obligation of a person to deliver the share of the produce to the owner if he is really a bargadar. If he is not a bargadar, such deposit would not give him the right of a bargadar, if really he has not got that right. Niharbala v. State of West Bengal, (1980) 1 CHN 477. However if when an application under section 16 (4) is made before the officer or authority to accept to accept the deposit of the share of produce and that stage the owner of the land appears before the officer or authority and denies that the person so depositing is his bargadar and files an objection against such deposit, the officer or authority has to decide such dispute first and then to accept the deposit made by the person claiming to be the bargadar.

Q. Whether the right of cultivation of land by Bargadar is heritable and transferable? Discuss the rule of law relating to continuation of right to cultivate on the event of death of the bargadar.

Section 15A of the West Bengal Land Reforms Act, 1955 speaks of the continuation of right of cultivation of land on bargadar's death.

Sub-section (I) of section 15A of this Act provides for the cultivation of land may be continued by the lawful heir of the bargadar.

Where a bargadar cultivating any land dies at the time when cultivation of such land by the bargadar was continuing, the cultivation of such land may be continued by the lawful heir of the bargadar, or where there are more than one lawful heir, by such lawful heir of the bargadar as all the lawful heirs of the bargadar may determine within the prescribed period.

It is provided that where the lawful heirs of the bargadar omit or fail to make a determination as required by the above provision, the officer or authority appointed by the State Government under sub-

section (I) of section 18 of this Act may nominate one of the lawful heirs of the bargadar who is in position to cultivate the land personally to continue the cultivation of such land.

Sub-section (2) of section 15A of this Act directs that the lawful heir shall cultivate the land subject to prescribed terms and conditions.

The lawful heir of the bargadar who is determined or nominated for the cultivation of the land shall cultivate the land subject to such terms and conditions as may be prescribed.

Sub-section (3) of section 15A of this Act provides that who will be eligible for cultivation of land if there is no lawful heir of the bargadar or absence of determination of the lawful heirs of such bargadar.

Where. — -

- (a) No lawful heir of the bargadar is in a position to cultivate the land personally; or
- (b) the lawful heirs of the bargadar fail to determine within the prescribed period, the heir by whom the cultivation of the land will be continued or the officer or authority appointed by the State Government under sub-section (I) of section 18 of this Act also omits or fails to nominate any lawful heir of the deceased bargadar for the continuation of the cultivation of the land; or
- (c) the person determined or nominated under sub-section (I) of section 15A of this Act omits or fails to take any steps within the prescribed period for the continuation of the cultivation of the land, the cultivation of such land may be continued by such person, whether an heir of the deceased bargadar or not, as may be nominated by the person whose land was cultivated by the deceased bargadar.

Clause (c) of sub-section (3) of section 15A of this Act empowers the land owners to nominate either the heir of the deceased bargadar or the outsider to continue the cultivation of the land.

In this context, in **N. C. Dutta v. J. L. FLO. (1980) 2 Cal LJ 282**, it was held that the owner has no obligation to nominate any heir of the deceased bargadar. He can nominate even an outsider.

Q. What are the grounds on which cultivation by Bargadar can be terminated? State the provision for restoration of the right of cultivation by a bargadar where such right has been terminated in contravention of the provisions of the W.B.L.R. Act 1955. If the authority determines that the bargadar had voluntarily surrendered or abandoned the cultivation of the land, can the owner of the land resume personal cultivation of such land?

Section 17 of the West Bengal Land Reforms Act, 1955 speaks about the termination of cultivation by bargadar.

No person shall be entitled to terminate cultivation of his land by a bargadar except in the execution of an order made by such officer or authority as the State Government may appoint, on one or more of the following grounds. -

(a) That the bargadar has without any reasonable cause failed to cultivate the land or has used such land for any purpose other than agriculture.

(b) That the land is not cultivated by the bargadar personally.

(c) That the bargadar has failed to tender or deposit to the full extent the share of the produce.

It is provided that no order for the termination of cultivation shall be given effect to if the bargadar delivers to the person, whose land he cultivates, or pays to him the market price thereof, within such time and in such installments as the officer or authority making the order may specify in this behalf.

(d) That the person owning the land requires it bonafide for bringing it under the personal cultivation:

It is provided that the person owning the land shall be entitled to terminate cultivation by a bargadar or only so much of land as, together with any other land in the personal cultivation of such land of such person, does not exceed 3.00 hectares.

It is further provided that such person shall not be entitled to so terminate cultivation by a bargadar as to reduce the aggregate area of the land cultivated by such bargadar to less than 1.00 hectare.

According to explanation to clause (b) of sub-section (1) of this section 17, a bargadar who cultivates the land with the help of members of his family shall be deemed to cultivate it personally.

If an owner fails to bring under personal cultivation any land, the cultivation of which by a bargadar has been terminated within two years from the date of such termination or allows such land to be cultivated by some other person, the land shall vest in the State free from all encumbrances under the order of the prescribed authority in the prescribed manner. The owner of the land shall be entitled to an amount therefore in accordance with provisions of section 14V.

No bargadar shall be entitled to cultivate more than 4.00 hectares of land.

In computing this area, any land owned by the bargadar as well as the land cultivated by him as a bargadar shall be taken into account.

If a bargadar cultivates the land in excess of 4.00 hectares, the share of the produce due to him as a bargadar in respect of then land in excess of 4.00 hectares shall be forfeited to the State Government by the order made in this behalf by a Revenue Officer.

Where any land cultivated by a bargadar is in excess of the limit, the person whose land is cultivated by such bargadar shall have the land cultivated by any person, referred to in the provision of section 49 of

This Act, who is willing to cultivate the said land as a bargadar. The expression "personal cultivation" used in the provisions of section 17 shall not include the cultivation by servants or labourers or wages payable in cash or in kind not being as a share of the produce or both.

In the context of a matter as to whether the bargadar not cultivating the land personally, it was fact that in **Harendra Nath Ghosh v. State of West Bengal (2003) 2 Cal LJ 413 (DB)** the distance of the plot of land

is six kilometers from the place of residence of the bargadar. The question is how the respondent can personally Cultivate the and continue as bargadar. The Calcutta High Court opined that It may not be possible for the bargadar to cultivate the land personally.

Section 19B of the West Bengal Land Reforms Act, 1955 provides for the restoration of land to bargadar.

If a person owning any land terminates or causes to the terminated the cultivation of the land by a bargadar in contravention of the provisions of this Act, then any officer specially empowered by the State Government shall, on an application by such bargadar, by order direct. —

(a) in a case where such land has not been cultivated or has been cultivated by the owner or by any person on his behalf other than a bargadar, that the land he immediately restored to the applicant and further that forty percent of any produce of the land shall be forfeited to the State Government and the remaining sixty percent of such crops shall be retained by such applicant.

(b) in a case where such land has been cultivated by a person other than the bargadar engaged by the owner, that the land be restored at the end of the cultivation season to the applicant and further that the person other than the bargadar shall retain twenty-five percent of the crops has vested before restoration and make over the remaining seventy-five percent of such crops to such applicant:

It is provided that nothing in this section 19B shall apply to termination of cultivation by a bargadar.

It is further provided that an application shall be made as within two years from the date of termination of cultivation by the bargadar.

It is also provided that if there is more than one applicant, the bargadar who has cultivated the land for the longest period shall be considered to be the rightful bargadar for the purpose of restoration in exclusion of other bargadars.

It is also provided that application has been disposed of with the order of restoration of cultivation by a bargadar, the question shall not be re-opened on any other application.

If the produce forfeited cannot be recovered from the owner of the land or the person cultivating the land on his behalf other than a bargadar or if the share of produce receivable by the bargadar cannot be recovered from any person other than bargadar, the money value of the share of produce so forfeited or share of produce so receivable shall be recovered by the prescribed authority as a “public demand” under the Bengal Public Demands Recovery Act, 1913, on a written requisition sent by such prescribed authority to the certificate officer.

An appeal against any order made under the provision of sub-section (I) of this section 19B shall be to the Collector who shall be superior in rank to the officer from whose order the appeal is preferred.

Section 20B of the West Bengal Land Reforms Act, 1955 lays down the provisions as to surrender or abandonment by bargadar-

If a bargadar surrender his right to cultivate in relation to any land cultivated by him as a bargadar, or voluntarily abandons cultivation of such land the, owner of the land or the bargadar or any other person may give information in writing of such surrender or abandonment to the officer or authority appointed by the State Government, having jurisdiction in the area in which such land is situated.

On receipt of such information or on his own motion, such officer or authority shall issue a notice in prescribed form to the bargadar.

After giving, the bargadar and the person whose land was cultivated by the bargadar, an opportunity of being heard and making such enquiries as it may deem necessary, such officer or authority shall determine whether the bargadar had voluntarily surrendered or abandoned his right of cultivation in relation to such land.

If such officer or authority determines that the bargadar had not voluntarily surrendered or abandoned the cultivation of the land which was being cultivated by him and that he was compelled by force or otherwise to surrender or abandon the cultivation of such land, such officer or authority shall restore the bargadar to the cultivation of such land.

if such officer or authority determines that the bargadar had voluntarily surrendered the cultivation of the land which was cultivated by him, the person whose land was being so cultivated shall not resume personal cultivation of such land.

But he may, with the permission of such officer or authority, get the land cultivated by any person who is willing to cultivate the land as a bargadar.

Any contravention of the provisions of sub-section (3) or sub-section (4) of this section 20B, shall be an offence which is punishable with imprisonment for a term which may extend to six months or with fine which may extend to one thousand rupees or with both.

It is provided that subject to the payment of compensation by a transferee to a bargadar under the Land Acquisition Act, 1894, and the rules made there under, nothing in this provision of sub-section (5) of this section 20B shall apply to any land intended to be utilized for any of the purposes referred to in the first provision to section 14Y of this Act.

Q. What is record of rights? How is it maintained?

Under sub-section (1) of section 21D of the West Bengal Land Reforms Act, the names of bargadars in respect of every raiyat shall be entered in the record - of - rights in such manner as may be prescribed.

Under sub-section (1) of section 50 of this Act, the prescribed authority shall maintain up-to-date in the prescribed manner the village record - of - rights by incorporating therein the changes on account of.

(a) Mutation of names as a result of transfer or inheritance;

- (b) Partition, exchange, or consolidation of lands comprised in plots of land, or establishment of Co-operative Farming Societies;
- (c) New settlement of lands or plots of land;
- (d) Variation of revenue;
- (e) Alteration in the mode of cultivation, for example, by a bargadar.
- (f) Such other causes as necessitate a change in the record-of-rights.

Section 50 of the West Bengal Land Reforms Act, 1955 provides for the maintenance of the record-of- rights.

Sub-section (1) of section 50 of this Act directs the prescribed authority to maintain up-to-date the village records-of-rights in the prescribed manner.

If there is any changes that will be incorporated on account of.

- (a) Mutation of names as a result of transfer or inheritance;
- (b) Partition, exchange or consolidation of lands comprised in plots of land or establishment of Co-operative Farming Societies;
- (c) New settlement of lands or plots of land;
- (d) Variation of revenue;
- (e) Alteration in the mode of cultivation, for example by a bargadar;
- (f) Such other causes as necessitate a change in the record-of-rights.

Sub-section (2) of section 50 of this act speaks of computerized record-of-rights.

For every mouza in any district for which computerization of land-record has been completed, the original set of finally published record-of-rights prepared under section 51A of this Act for such mouza of such district shall be preserved, and a set of computerized print-out of the finally published record of such mouza duly authenticated by the prescribed authority shall be taken up for updating and for issue of certified copies through computer.

Such computerized record-of-rights duly authenticated by the prescribed authority shall be presumed to be correct and on a par with the original copy of record-of-rights.

In the context of question as to prescribed authority, it was held in **Gopal Das v. Bhag chas Officer (1980) 2 CHN 454** that the Bhag chas Officer has no jurisdiction to act under section 50 for maintenance of record-of-rights.

But in **Sasanka S. Maity v. Dulal K. Maity 2005 (3) CHN 259** it was held by the Division Bench of Calcutta High Court that when the mutation proceedings is initiated by the Junior Land Reforms Officer (JLRO), he is considered to be the prescribed authority.

Section 51B of the West Bengal Land Reforms Act, 1955 provides for revision or correction of entry in record-of-rights.

Any Revenue Officer specially empowered by the State Government may, on an application or on his own motion, at any stage of revision or preparation of the record-of-rights but before the final publication of any such record-of-rights, revise or correct any entry in such record-of-rights, after giving the persons interested an opportunity of being heard and after recording the reasons therefore:

It is provided that any order under this sub-section (I), shall be appealable in accordance with the provisions of sub-section (5) of section 51A of this Act.

Revision or correction of entry in record-of-rights before or after final publication

Section 51 BB of the West Bengal Land Reforms Act 1955 provides for revision or correction of entry in record-of-rights before or after final publication.

An officer specially empowered in this behalf by the State Government may revise or correct any entry in record-of-rights in respect of a mouza at any Stage before or after the final publication of Such record- of-rights if it is necessary, in his opinion to do so in pursuance of an Order under chapter II B of this Act or on account of any amendment made in the provision of this Act.

It is provided that no such revision or correction shall be made except when it is necessary to do so in order to prepare a separate Khaitan as required under the provision of sub section (5) of section 51 by amalgamating the Khaitans in respect of a raiyat already prepared or finally published or to correct a bonafide mistake, until a notice has been given to the persons interested to appear and be heard in the matter.

In connection with correction of entry in record-of-rights, the Revenue Officer issued notice to the petitioner raiyat, it was held in **Ananda Prasad Dey v. State of West Bengal (2002) 3 CHN 257 (DB)** that such notice is valid and cannot be challenged.

Q. Who is a Revenue Officer? State the grounds on which he can make alteration of revenue. What is the power and jurisdiction of Civil Court in this regard? State the procedure for recovery of arrears of revenue by the government.

Revenue Officer: Under **sub-section (12) of section 2** of the West Bengal Land Reforms Act, "Revenue Officer" means any officer whom the State Government may appoint by name or by virtue of his office to discharge any of the functions of a Revenue Officer in any area.

Grounds for alteration of revenue

Section 25 of the West Bengal Land Reforms Act, 1955 lays down the provision as to the grounds for alteration of revenue.

The revenue payable by a raiyat may be altered by the Revenue Officer in the manner to be prescribed.

Such alteration of revenue is made by the Revenue Officer if the land held by the raiyat and his family has increased or decreased in area by diluvion, amalgamation, purchase, partition, subdivision, acquisition or any other cause whatsoever subsequent to the determination of revenue.

Power and Jurisdiction of the Civil Court

Section 26 of the West Bengal Land Reforms Act, 1955 speaks of the bar to jurisdiction of Civil Court.

No suit or other legal proceedings shall be instituted in any Civil Court in respect of the determination of any revenue or the omission to determine any revenue under the Chapter - IV of this Act.

Procedures of recovery of arrears of Revenue by the Government

Section 27 speaks about installment, time and place for payment of revenue in the following manner:

- A raiyat shall pay revenue in such installments, in such manner and at such times, as may be prescribed.
- Payment of revenue shall be made at the office of the Revenue Inspector or at such other places and in such other manner as may be prescribed.
- Any Installment of revenue or part thereof which is not duly paid within the prescribed time shall be deemed to be an arrear.

Q. Examine the provision laid down in the W.B.L.R Act 1955 for distribution of vested lands at the disposal of the State Government. What penalty is imposed for unauthorized occupation of vested lands?

Provisions of distribution of vested lands

Section 49 of the West Bengal Land Reforms Act, 1955 speaks about the principles of the distribution of lands.

The settlement of a land which is at the disposal of the State Government shall be made, without any premium being charged for it, in such a manner as may be prescribed, with the persons who are residents of the locality where the land is situated, and who together with other members of their family, own no land or less than 0.4047 hectare of land used for the purpose of agriculture.

One half of the lands cultivated by them as bargadar shall be taken into account for the purpose of calculating the aggregate of such land.

Therefore, the settlement of the land shall be made subject to the following conditions, namely:-

(a) That, in the case of agricultural land, such person intends to bring the land under the personal cultivation.

(b) That, in the case of homestead land, such person having no homestead of his own, intends to construct a dwelling house thereon, and

(c) Such other terms and conditions as may be prescribed:

It is provided that among the persons eligible for such settlement, the preference shall be given to the persons belonging to Scheduled Caste or Scheduled Tribe or who form themselves into a Co-operative Society for the purpose.

It is further provided that no settlement of land shall be made with any person or with a member of the family of such person, who is engaged or employed in any business, trade, undertaking, manufacture, calling, service or industrial occupation.

It is also provided that nothing in the provisions of sub-section (l) of Section 49 shall not apply to an agriculture labour, artisan or fisherman.

No person with whom any land is settled shall be entitled to transfer such land except by way of a simple mortgage or a mortgage by deposit of title deeds in favour of a Scheduled Bank, or a Co-operative Society or a Corporation owned or controlled by the Central or State Government or both for the purpose of obtaining loan for the development of land or for the improvement of agricultural production or for the construction of a dwelling house.

If the Revenue Officer, on his own motion or on application made to him in that behalf, is satisfied that the settlement of such land was made by mistake or obtained by practice of fraud, misrepresentation, coercion or otherwise, he may, by order in writing, annul the settlement.

When a Revenue Officer makes an order annulling the settlement, he shall enforce delivery of possession of such land to the Collector by using such force as may be required after evicting the person in actual occupation of such land.

For the purpose of enforcing delivery of possession of any land and evicting any person in actual occupation of such land, such Revenue Officer may send a written requisition to the Officer-in-Charge of the local Police Station.

On receipt of such written requisition, the police officer shall render the lawful assistance for enforcing delivery of possession of such land.

Any person aggrieved by the order made by the Revenue Officer may, within thirty days from the date of such order prefer an appeal to such authority as the State Government may, by notification in the Official Gazette, specify and the order passed by such authority in appeal shall be final.

The State Government may settle with a local body or an authority constituted or established by or under any law for the time being in force land which is at the disposal of the State Government for such purpose and on such terms and conditions as may be decided by the State Government.

Where the State Government is satisfied that it is necessary so to do for a public purpose or for establishment, maintenance or preservation of any educational or research institution or industry, settlement for any period of any land may be made with any person or institution or such terms and conditions including periodical payments, with or without any premium being charged therefore, in such a manner as may be prescribed.

Section 49A is the Penal section provided for unauthorized occupation of vested lands.

It is provided that any person who is in unauthorised occupation of the land which is at the disposal of the State Government fails to vacate such land in spite of being served a notice upon him, or obstruct any person with whom the land has been settled from taking possession of such land, shall be punishable with imprisonment which may extend to one year or with fine which may extend to two thousand rupees or with both.

Q. Write short notes on any FOUR:

- | | | | |
|---------------------|------------------|------------------------|---------------------------|
| (i) Land | (ii) Encumbrance | (iii) Collector | (iv) Personal Cultivation |
| (v) Operation Barge | (vi) Family | (vii) Standard Hectare | (viii) Consolidation |

Land: Under **sub-section (7) of section 2** of the West Bengal Land Reforms Act, “land” means land of every description and includes tank, tank-fishery, fishery, homestead, or land used for the purpose of livestock breeding, poultry farming, dairy or land comprised in tea garden, mill, factory, workshop, orchard, hat, bazar, ferries, tolls or land having any other sairati interests and any other land together with all interests, and benefits arising out of land and things attached to the earth or permanently fastened to anything attached to earth.

Encumbrance: Under **sub-section (6A) of section 2** of the West Bengal Land Reforms Act, encumbrance” means any lien, easement or other right or interest created by a raiyat on his plot of land or in limitation of his own interest therein, but does not include the right of the bargadar to cultivate the land of the plot of land.

Collector: Under **sub-section (4) of section 2** of the West Bengal Land Reforms Act, “Collector” means the Collector of a district or any other officer appointed by the State Government to discharge any of the functions of a Collector under this Act.

Personal cultivation: Under **sub-section (8) of section 2** of the West Bengal Land Reforms Act, "Personal cultivation" means cultivation by a person of his own land on his own account -

- (a) By his own labour, or
- (b) By the labour of any member of his family, or
- (c) By servants or labourers on wages payable in cash or in kind not being as a share of the produce or both. -

Provided that such person or member of his family resides for the greater part of the year in the locality where the land is situated and the principal source of his income is produce of such land.

Family: Under **clause (c) of section 14K** of the West Bengal Land Reforms Act, "family" in relation to a raiyat shall be deemed to consist of—

- (i) Himself and his wife, minor sons, unmarried daughters, if any,
- (ii) His unmarried adult son, if any, who does not hold any land as a raiyat,
 - (m) his married adult son, if any, where neither such adult son nor the wife nor any minor son or unmarried daughter of such adult son holds any land as a raiyat,
- (iv) Widow of his predeceased son, if any, where neither such widow nor any minor son or unmarried daughter of such widow holds any land as a raiyat,
- (v) Minor son or unmarried daughter, if any, of his predeceased son, where the widow of such predeceased son is dead and any minor son or unmarried daughter of such predeceased son does not hold any land as a raiyat, but shall not include any other person.

Standard hectare: Under clause (f) of section 14K of the West Bengal Land Reforms Act, "Standard hectare" means,

- (i) In relation to an agricultural land, an extent of land equivalent to. -
 - (a) 1.00 hectare in an irrigated area,
 - (b) 1.40 hectare in any other area,
- (ii) In relation to any land comprised in an orchard, an extent of: land equivalent to 1.40 hectares,
 - (m) In relation to any other land, an extent of land equivalent 1.40 hectares.

Consolidation: Under **sub-section (5) of section 2** of the West Bengal Land Reforms Act, "Consolidation" includes re-alignment of a plot of land or rearrangement of parcels of land comprised in different plots of land for the purpose of rendering such plots of land more compact.

WEST BENGAL PREMISES TENANCY ACT, 1997

Q. Define tenant. Who is a statutory tenant? How long the widow of a predeceased tenant can enjoy and occupy the premises as tenant who does not own any other residential accommodation? Who are the persons who can continue to be a tenant after the death of the original tenant in the tenanted premises?

Tenant: Under **clause (g) of section 2** of the West Bengal Premises Tenancy Act, 1997, 'tenant' means any person by whom or on whose account or behalf the rent of any premises is or, but for a special contract would be payable and includes any person continuing in possession after termination of his tenancy and, in not exceeding five years from the date of death of such tenant or from the date of coming into force of this Act, whichever is later, his spouse, son daughter, parent and the widow of his predeceased son, who were ordinarily living with the tenant up to the date of death of the tenant as the members of his family and were dependent on him and who do not own or occupy any residential premises, and in respect of premises let out for non-residential purpose his spouse son daughter and parent who were ordinarily living with the tenant up to the date of his death as members of his family, and were dependent on him or a person authorised by the tenant who is in possession of such premises but shall not include any person against whom any decree or order for eviction has been made by a Court of competent jurisdiction.

If under the document a party gets exclusive possession of a property, prima facie, he is considered to be a tenant, but circumstances may be established which negatives the intention to create lease. **Associated Hotels v. R. N. Kapoor AIR 1959 S.C. 1262.**

Statutory Tenant: A statutory tenant is commonly used to describe a person remaining in occupation of the premises let out to him after the expiry of the period of tenancy.

A statutory tenant could enjoy the protection of the status until he is evicted, and his tenancy would come to an end either on the surrender of the premises_ by him or on the passing a decree of eviction.

— **Biswbani Pvt. Ltd. v. Santosh Kumar AIR 1980 SC**

A statutory tenant has no estate as tenant but a personal right to retain possession of the estate.
Halsbury's Law of England.

Tenant-at-will: A tenant-at-will is a tenant who holds a tenancy which is determinable at the will of either landlord or tenant and the contract may be express or implied. — **Halsbury's Laws of England.**

A tenant within the meaning of the clause (g) of section 2 of the West Bengal Premises Tenancy Act, 1997 is not a tenant-at-will. But the position of tenant becomes more or less like a tenant-at-will when he fails to vacate the tenanted premises as per notice under **section 6(l) (e)** of this Act.

In the event of death of the tenant, in case of residential tenancy his spouse, son daughter, parent and the widow of his predeceased son, who were ordinarily living with the tenant up to the date of death of the tenant as the members of his family and were dependent on him and who do not own or occupy any

residential premises, and in respect of premises can be treated as tenant or tenants for a period of five years from the date of death of such tenant or from the date of coming into force of this Act, whichever is later.

For occupying the premises for a period of five years, the conditions mentioned in section 2 (g) of the Act have to be fulfilled otherwise possession may be recovered from the spouse or any other relative of the deceased tenant immediately on the death of the tenant. Whether the tenancy was given for residential or non-residential purposes.

In non-residential tenancy, if the tenant has authorised any other person to be in possession of such premises either as a partner or in any other capacity such person has also similar right to continue as tenant for a period not exceeding five years from the date of death of such tenant or from the date of coming into force of this Act, whichever is later.

Q. Mention the premises which are exempted from the purview of the West Bengal premises Tenancy Act, 1997. Discuss the obligation of a Tenant under the W.B.P.T. Act, 1997.

Section 3 of the West Bengal Premises Tenancy Act, 1997 speaks about exemption. The contents in the Act shall not be applicable to:

- (a) Any premises owned by the Central Government or any State Government or a Government undertaking or enterprise or a Statutory body which is not a local authority or a Cantonment Board or a local authority".
- (b) Any tenancy created by the Central Government or any State Government in respect of the premises taken or lease or requisitioned by that Government.
- (c) Any tenancy where the lease with due consent of the tenant has been registered under the Registration Act, 1908 after the commencement of this Act.
- (d) Any premises rented to a foreign mission or international agency.
- (e) Any tenancy created by a foreign mission or an international agency by way of lease or otherwise.
- (f) Any premises let out for residential purpose, not being a premises within the purview of the provision of clause (c) which carries more than six thousand and five hundred rupees as monthly rent in the areas included within the limits of the Calcutta Municipal Corporation or the Howrah Municipal Corporation, or three thousand rupees as monthly rent in other areas to which this Act extends;
- (g) Any premises let out for non-residential purpose which carries more than ten thousand rupees as monthly rent in the areas included within the limits of the Calcutta Municipal Corporation or

the Howrah Municipal Corporation, or five thousand rupees as monthly rent in other areas to which this Act extends.

The Supreme Court has held that statutory Corporations, such as, Life Insurance Corporation, Industrial Financial Corporation, oil and natural gas commission are wholly controlled by the government. So, the tenancy created by such statutory corporations have been held to be outside the purview of the Rent Control Legislation. **Assistant Director General of Intelligence v. Harnam, AIR 1979 J&K 33.**

Obligations of tenant

Section 5 of the West Bengal Premises Tenancy Act, 1997 imposes the obligations on the tenant. Those are.

1- Every tenant shall pay rent to the landlord or his authorised agent within the prescribed period. 2- Every tenant shall use the premises for the purpose for which it is let out to him.

3- Every tenant shall allow the landlord or his authorised agent to enter upon the premises and inspect the condition of it after the service of a notice on him by the landlord or his authorised agent in this behalf.

4. No tenant shall make any addition to, or alteration in the premises without the written consent of the landlord.

5. No tenant shall sublet the premises without consent of the landlord in writing.

6 No tenant shall transfer or assign his right in the tenancy or any part of it without previous consent in writing of the landlord.

7. Every tenant shall pay charges relating to the maintenance and amenities of the premises at the rate of ten percent of the fair or agreed rent, as the case may be.

8. Every tenant shall pay his share of Municipal Tax as an occupier of the premises in accordance with the provisions of Kolkata Municipal Corporation Act, 1980 or the West Bengal Municipal ACT. 1993

The act of tenant in possession permitting others to use the premises does not amount to sub-letting. As long as the tenant remains in possession he may permit others to use it. **Petroleum W.U. v. Vega Trading Corporation AIR 1989 SC 1819.**

Q. Who can fix the fair rent and when? Discuss the provisions relating to the fixation of the fair rent. Can a fair rent be increased? Can a Landlord claim rent in excess of fair rent? What is the usual time to pay the fair rent by the tenant? Is there any remedy to the tenant if rent has already been paid by him to the landlord in excess of fair rent?

Fixation of Fair Rent

Clause (b) of section 2 of the West Bengal Premises Tenancy Act, 1997 gives this definition of "Fair rent" as the rent fixed under **section 17**.

Fixation of Fair rent

Section 17 of this Act speaks about the fixation of "fair rent".

The Controller shall fix the fair rent. It is done by the Controller **on the application made to him by the landlord or by the tenant in the prescribed manner.**

Thus Section 17 made it clear that the fair rent cannot be determined by mutual arrangement when the mode of fixation of fair rent is provided by the statute. **Sriram Roy MP v. Ashok Nair 2005 (3) CHN 596 (DB)**

The fair rent for a year in respect of any premises constructed and let out after the year 1984 shall be fixed on the basis of annual payment of an amount equal to six and three fourth percent per annum of the aggregate amount of the actual cost of construction and the market price of the land on the date of commencement of construction of the premises.

Explanation to **Sub section (2) of section 17** of this Act states that the cost of construction of a premises shall include the cost of water supply, Sanitary and electric installation and shall be determined with due regard to the rates adopted for the purposes of estimate by the Public Works Department of the State Government for the area Concerned

The Controller may allow or disallow the variation of estimates up to ten percent due to nature of the premises.

It is provided that while calculating the market value of the site on which the premises was constructed, the Controller shall take into account only the portion of the Site on which the premises was constructed and sixty percent of the portion of the vacant land, if any, appurtenant to such premises, the excess portion of the vacant land shall be treated as amenity.

Where a tenancy subsists for twenty years or more in respect of the premises constructed in or before the year 1984, the fair rent shall be determined by adding to the rent as on 1st July 1976 not more than three times, and then deducting the increase, if any, in the manner provided in Schedule II to this Act, or by accepting the existing rent if such rent is more than the increased rent determined according to that Schedule.

Where a tenancy subsists for ten years or more but less than twenty years in respect of the premises constructed in or before the year 1984, the fair rent shall be determined by adding to the rent as on 1st July, 1986 not more than two times and then deducting the increase if any in the manner provided in Schedule III to this Act, or by accepting the existing rent if such rent is more than the increased rent determined according to that Schedule.

Where a tenancy subsists for twenty years or more but less than twenty years in respect of the premises constructed in or before the year 1984 and used for the commercial purpose, the fair rent shall be determined by adding to the rent as on 1st July, 1976 five times or by accepting the existing rent if such rent is more than the increased rent.

Where at the commencement of this Act of 1997 any proceeding is pending for fixation of the fair rent of such premises Under the West Bengal Premises Tenancy Act 1956, the rent fixed under the said proceeding shall be the fair rent under this Act of 1997.

Where none of the above provisions of the Section 17 apply to any premises, the fair rent shall be such as would be reasonable, having regard to the situation, locality and condition of the premises and the amenities provided therein and, where there are similar or nearly premises in the locality, having regard also the rent payable in respect of such premises.

Comparison with other premises could only be allowed, if they are comparable units, this is to say, if they are similar in situation, user, extent or amenities, as arbitrary comparison is not permissible. **Rakhal**

v. S. P. Ghosh AIR 1952 Cal. 171

In **Food Corporation of India v. Anurag Property Pvt. Ltd. 2007 (I) CAN 1 (DB)**, it was also noted that even if there is an agreement between landlord and tenant for enhancement of rent, but where the tenancy is governed by the West Bengal Premises Tenancy Act, such agreement cannot be enforced when it is inconsistent with the provisions of the Act.

All things which are intended to be enjoyed as part of the tenancy would be part and parcel of the tenancy and all sums payable on those accounts would be rent. **Khemchand v. Mahammadbhai AIR 1970 SC 102.**

Where electricity charges are not fixed and can only be ascertained at the end of each month after the electricity consumed is known, while the rent is payable in advance the electric charges cannot be held to be part of the rent. **Chotelal v. Kewal AIR 1971 SC 987.**

Rent in excess of fair rent not chargeable

Section 13 of the West Ben at Premises Tenancy Act, 1997 speaks about the rent in excess of fair rent not chargeable.

No tenant shall be liable to pay to the landlord for the occupation of any premises any amount in excess of fair rent of the premises unless such amount is lawful increase of the fair rent in accordance with the provision of this Act of 1997.

Any agreement for the payment of rent in excess of the fair rent shall be construed as an agreement for the payment of the fair rent only.

The fair rent shall be paid within the time fixed by the contract or in the absence of any such contract by the fifteenth day of the next month following the month for which it is payable.

It is provided that the tenant may 'pay the rent payable for any month at any time during such month before it falls due.

Section 28 of the West Bengal Premises Tenancy Act 1997 provides for penalty for charging rent in excess of the fair rent.

Whoever contravenes any of the provisions of section 13 of this Act in respect of rent in excess of fair rent not chargeable shall be liable to a fine which may extend to five times the amount or the value of the consideration claimed or demanded or received in excess of the fair rent for the first occasion and for the second or subsequent occasion, to a fine which may extend to ten times the amount of such excess.

A complaint in connection with the above provision shall be made to the Controller by the party aggrieved.

It is only when fair rent is fixed, the landlord cannot demand or charge any rent higher than fair rent. But as long as no such fair rent is fixed, the parties are free to bargain and arrive at a higher contractual rent. **Md. Ibrahim Khan v. Mehboob Khan (1991) 2 RCJ 130 (Bom.)**

Refund of rent, premium, etc., not chargeable under the Act

Section 16 of the West Bengal Premises Tenancy Act, 1997 speaks about the refund of rent, premium, etc. not chargeable under this Act.

Where any sum or other consideration has been paid by or on behalf of the tenant to a landlord in contravention of any of the provisions of this Act of 1997 the Controller may, on application made to him within a period of six months from the date of such payment, by order, direct the landlord to refund such sum or the value of such consideration to the tenant or to adjust such sum or the value of such consideration against the rent payable by the tenant.

Usual time to pay the fair rent by the tenant: There is no such usual time mentioned in the West Bengal Premises Tenancy Act, 1997 as to payment of fair rent by tenant. However it has been held by courts in various judgments that a tenant shall pay the fair rent either on the first day or in the first week or in the first 10 days of the month as per the mutual arrangement with the landlord.

Q. Discuss the obligation of landlord as imposed upon him by the West Bengal Land Reforms Act, 1997. State the provision of W.B.P.T Act, 1997 relating to recovery of possession of a tenanted premises by landlord who is a released or retired person from the Army, Navy or Air Force.

Obligations imposed upon landlord by the West Bengal Premises Tenancy Act 1997

Section 4 of the West Bengal Premises Tenancy Act, 1997 imposes the obligations on the landlord. These are. —

1. Every landlord or his authorised agent shall issue a written receipt to the tenant forthwith on receipt of the amount of rent and the charges relating to the maintenance of premises.

The receipt shall be in the prescribed form and signed by the landlord.

2. Every landlord shall be bound to keep the premises in good and tenantable condition.

3. Every landlord shall be bound to take measures for due maintenance of essential supply or service comprised in the tenancy.

4. No landlord shall claim, demand or receive any premium or other consideration whatsoever for giving his consent to the subletting the whole or any part of the premises held by the tenant.

The term "premium" has not been defined in this Act but according to section 105 of the Transfer of Property Act defines "premium" as the price paid in consideration of a lease being granted by the lessor to the lessee.

Right to recover immediate possession

Section 9 of the West Bengal Premises Tenancy Act, 1997 speaks of the right to recover immediate possession.

Notwithstanding anything contained elsewhere in this Act or any other law for the time being in force or in any contract to the contrary, the right to recover immediate possession of any premises which has been let out shall accrue to the landlord who is:

- (a) A Government employee or retired Government employee;
- (b) In the occupation of any residential premises allotted to him by his employer.
- (c) Required by, or in pursuance of, an order made by his employer to vacate such residential accommodation or in default, to incur certain obligations on the ground that he owns a residential accommodation either in his own name or in the name of his wife or dependent child at or near the place of posting.
- (d) Who has reasonable requirement of the premises for his own occupation.

Sub-section (2) of section 9 of this Act speaks about recovery of immediate possession of premises which is required by the landlord who is released or retired person from the Army, Navy or Airforce.

Where the landlord is a released or retired person from the Army, Navy or Air force, or will retire within a period of less than one year as a member of the Army, Navy or Air force and the premises let out by him are required for his own occupation; or where the landlord is the parent or wife of a member of the Army, Navy or Air force who does while in service or within five years of retirement and the premises let out by such member are required by the occupation of the family of such member, the landlord may Institute a suit before the Civil Judge for the recovery of immediate possession of such premises.

The wife of a government servant owning a premises let out to a tenant cannot file a petition under section 9 of the Act even if the Government employee is required to vacate the government accommodation on the ground that his wife is the owner of the said premises. When the government employee does not claim that premises let out to the tenant is his own, his wife's petition cannot be entertained in a proceeding under Section 29B of the Act. **Bimal v. Radha AIR 1985 Cal 322.**

Q. If a landlord refuses to accept rent from his tenant, what remedy is available to the tenant. Can a landlord refuse to grant receipt for rent paid by his tenant? What are the consequences of incorrect particulars in application for deposit of rent by the tenant in Rent Controller's office?

Section 21 of the West Bengal Premises Tenancy Act 1997 speaks about the manner of deposit of rent by a tenant. Where the landlord does not accept any rent tendered by the tenant within the prescribed period the tenant shall remit the rent to the landlord by postal money order within fifteen days of such refusal by the landlord.

Where any tenant remits rent to the landlord by postal money order within the prescribed period and it is returned to the tenant by the postal authority as undelivered, the tenant may deposit such rent with the Controller within fifteen days from the date on which it is so returned to the tenant.

Where there is a bonafide doubt as to the person or persons to whom the rent is payable, the tenant may deposit such rent with the Controller in the prescribed manner.

The deposit of the rent by the tenant shall be accompanied by the application supported by an affidavit stating. —

- (a) The description of the premises for which the rent is to be deposited;
- (b) The period for which the rent is to be deposited;
- (c) The name and address of the landlord or the person or persons claiming to be entitled to such rent;
- (d) The reasons for and the circumstances of application for the deposit of the rent.

The tenant shall produce for scrutiny by the Controller the last rent receipt and the money order form returned by the postal authority.

In the case of deposit of rent for successive months during any continuous period, no affidavit in support of the application for the deposit of the rent shall be required.

The application shall be accompanied by as many true copies thereof as there are landlords or persons claiming the rent along with the, prescribed fee for sending such copy or copies to the landlords of such persons by registered post with acknowledgement due.

On such deposit of the rent by the tenant, the Controller shall send the copy or copies of the application to the landlords or persons claiming to be entitled to the rent with an endorsement showing the date of deposit.

Such endorsement shall be authenticated by the seal of the office together with the signature of the Controller or some other officer authorised by him in this behalf.

Such authenticated copy of the application shall be admissible evidence in any court.

Where the rent for any month has been deposited on the ground that the postal money order was returned, then the tenant may continue to deposit the rent with the Controller without further tender of rent by the postal order to the landlord.

The tenant may continue to deposit the rent with the Controller (or subsequent months or periods unless the landlord signifies by notice in writing to the tenant his willingness to accept the rent it tendered to him within the prescribed period.

It can be said that the provision of Section 21 is compromise oriented. In **Shanti Devi Sharma v. Durga Rani Ghosh (1998) 2 Cal LJ 24**, it was held that as soon as the amount of rent was sent by money order and the landlord refused that money order, the tenant complied with the terms of compromise.

Time limit of depositing rent: As per **Sub Section 1 of Section 22** no rent deposited with the controller shall be considered to have been validly deposited under Section 21 unless deposited within fifteen days of the time fixed by any contract in writing for payment of rent or, in the absence of any such contract in writing, unless deposited within the last day of the month following the month for which rent was payable, where any rent remitted to the landlord by postal money order within the prescribed period is returned to the tenant by the postal authority as undelivered or on account of landlord having refused to accept the rent or for any other reason, such rent may be validly deposited within fifteen days from the date on which it is so returned to the tenant.

Tenant may send the rent by money order if the tenant feels that the personal tender may not be practicable or the landlord may not accept personal tender. **Ananth Bandhu v. Nagendra (1978) 1 Cal LJ 179**.

Deposit in the name of wrong person: According to **Sub Section 2 of Section 22**, no deposit of rent shall be considered to have been validly made, if the tenant wilfully or negligently makes any false statement in his application in the prescribed form to withdraw, the amount deposited before the date of institution of proceedings for the recovery of possession of premises from the tenant.

When a tenant deposits rent in the name of a wrong landlady, it was held that such a mistake was committed due to gross negligence in wrongly describing the landlady and the deposits were held to be invalid. **Bengal Tant v. Amiya Prabha, 64 CWN 342**.

Correction of Challan: If the tenant due to bonafide mistake mentioned only one name of the landlord, where there are more than one landlord, he can apply before the Rent Controller under Section 151 of

CPC to correct the challan and incorporate the words “and others” in them. **C Rewa Shankar v. V. J. Thakur, 89 CWN 1067**

No, a **landlord cannot refuse to grant receipt** for rent paid by his tenant. As it is the obligation of every landlord or his authorised agent to issue a written receipt to the tenant forthwith on receipt of the amount of rent and the charges relating to the maintenance of premises under **section 4** of the Act.

Section 32 of the West Bengal Premises Tenancy Act, provides for the penalty for the refusal to grant receipt by the landlord for rent paid.

If the landlord refuses to deliver to the tenant a receipt for any rent paid by the tenant, the tenant shall make an application to the Controller for such refusal.

The Controller shall, on application made by the tenant within two months from the date of payment and after hearing the landlord by order, direct the landlord to pay the tenant by way of damages of such sum not exceeding three times of the amount of rent paid by such tenant as the Controller may determine, and the cost of application made by the tenant.

The Controller shall issue a certificate to the tenant in respect of rent paid by such tenant. Rent sent by the tenant by way of money order does not attract the section 32 of this Act.

If the landlord receives the rent by signing the money order slip, that will be sufficient and there shall be no obligation for the landlord to send the rent receipt to the tenant. — **Jamnadas v. Mathuradas, 65 CWN 1025.**

Q. How can a landlord increase the rent of his tenanted premises?

Notice of increase of rent

Section 20 of the West Bengal Premises Tenancy Act, 1997 speaks of the notice of increase of rent.

Where a landlord intends to increase the rent of any premises, he shall give to the tenant the notice of his intention.

Such increase as intended by the landlord shall be permissible under this Act of 1997.

The increase of rent shall be due and recoverable from the month or period of tenancy next after the expiry of thirty days from the date on which the notice is given.

If upon service of notice under section 20 of the Act, the tenant accepts the wish of the landlord and agrees to the enhancement of rent, the matter ends. If he does not agree, then the landlord has to move to the Rent Controller for fixation of fair rent under Section 17 of the Act. **Calcutta Gujarati Education Society v. Kamarhaty Municipality AIR 2006 NOC 765 (Cal).**

Under **section 18** it is provided that the fair rent initially fixed shall be increased automatically. It shall be increased by 5 Percent every three years.

Section 18 also provides that the State Government may issue notification varying such rate of increase every four years from the date of commencement of the Act.

In **Calcutta Gujarati Education Society v. Kamarhaty Municipality AIR 2006 NOC 765 (Cal)**, it was held that section 18 applies only after fair rent is fixed under section 17 of this Act and after expiry three years from such fixation of fair rent.

Q. Discuss the law when and how a landlord can evict his tenant from the tenanted premises. State the rule of law relating to notice to be given by the landlord to his tenant before evicting him. Is there any exceptions?

Grounds on which tenant can be evicted

Under **section 6** a suit can be instituted by a landlord against the tenant for eviction on the following grounds:

- (i) Where the landlord reasonably requires the premises for his own occupation and landlord is not in a possession of any suitable accommodation within the same municipal corporation or within 10 kilometers from such premises in any other area where the Act extends.
- (ii) Where the landlord being a member of the Armed Forces of the Union of India requires the premises for occupation of his family and produces a certificate of the prescribed authority referred to in Section 7 of the Indian Soldiers (Litigation) Act, 1925, that he is serving under special conditions within the meaning of Section 3 of that Act or is posted in a non-family Area.
- (iii) Where the landlord requires the premises on the ground of building or re-building or for making substantial addition or alteration thereto and such building or rebuilding or substantial addition or alteration cannot be carried out without the premises being vacated.
- (iv) Where the tenant has sublet, assigned or otherwise parted with the possession of whole or any part of the premises for a purpose other than that for which it was let out without obtaining the consent in writing of the landlord.
- (v) Where the tenant has made default in payment of rent for three months within a period of twelve months, or for three rental periods within a period of three years where the rent is not payable monthly.
- (vi) Where the tenant has given notice to quit but has failed to deliver vacant possession of the premises to the landlord in accordance with such notice.
- (vii) Where the tenant has been using the premises or any part of the premises or allowing the use of the premises or any part thereof for immoral or illegal purpose;

- (viii) Where the tenant is guilty of any act of waste resulting in material deterioration of the condition of the premises.
- (ix) Where the tenant or any person residing in the premises let out to tenant has been guilty of conduct which causes annoyance to the neighbors including the landlord;
- (x) Where the tenant has acquired or constructed or has been allotted, a house or flat, provided a moratorium for one year allowed for vacating the premises.
- (xi) Where the tenant or his spouse, or son, or daughter or parent or the widow of his predeceased son, who is dependent on him does not reside in the premises for ten months and keeps the premises under lock and key.

The word "moratorium" used in the provision probably means a, temporary stopping of an activity.

Only because Tenant is holding Music classes in a part of the premises but the premises is predominantly used for residential purpose, it cannot be held that there has been a change of user of residential premises for commercial or other use. **Dattatraya v. H.G. Hiremath (1985) 1 RCJ 674 (Bom.)**

Acceptance of delayed rent by the landlord did not amount to waiver of the right of the landlord to seek eviction on the ground of default which was occurred to him under the Act and also the tenant committed default in payment of rent. **Balwant Singh v. Anand Kumar Sharma (2003) 1 RCJ 111 (S.C.)**

The inference that the landlord being a rich man cannot reasonably require the premises and would not occupy the annexe drawn by the lower courts was not held to be well founded by the Apex Court when it was undisputed that he had no other accommodation. **Surinder Singh v. Vijay Singh AIR 1992 SC 1540**

In the context of eviction on the ground of reasonable requirement, it was held in **Gopal Chandra Das v. Saraswati Basak 2003 (I) CHN 287 (DB)** that the need for a nine-member family staying in two bed rooms and a covered verandah, to evict the tenant is held to be genuine.

When the tenant converts two room into one or converts a hall into a stable he commits voluntary waste of the premises. **Young v. Spencer (1829) 10 B&C 145.**

In the context of knowledge of the landlord or consent of the landlord as to subletting, it was the fact in **Nitai Bhattacharjee v. Arunoday Datta 2006 (I) Cal LJ 126 (DB)** where a tenant admitted that he had sublet the premises to his brother-in-law and received rupees forty as rent from the sub-tenant, he is liable to be evicted on the ground of illegal subletting.

In written statement the tenant stated that the sub-tenancy was within the knowledge of the landlord. But where there was no prior written consent of the landlord, the tenant is liable to be evicted for illegal subletting of such premises.

It was held that the sub-tenancy was within the knowledge of the landlord is not sufficient.

A landlord who knowingly lets a room to a prostitute to carry on prostitution there, cannot either recover rent or evict such a tenant in a court of law. Where an agreement is illegal, immoral or opposed to public policy, such an agreement cannot be enforced. **Parul Bala v. Jamuna Bala 74 CWN 749.**

The act of a tenant in stopping the other occupants of the premises from using the bathroom and the latrine which they were entitled to use would constitute both nuisance and annoyance. **Niader v. Ugar AIR 1966 Punj. 509**

Sub-section 2 of Section 6 states that where a landlord has acquired his interest in the premises by transfer, it is provided that no suit for the recovery of the possession of such premises on the ground of requirement for building or rebuilding or addition or alteration or requirement for own occupation shall be instituted by the landlord before the expiration of a period of one year from the date of acquisition of such interest.

As per **Sub-section 3 of Section 6** where the landlord requires the premises on the ground of building or rebuilding or addition or alteration or for his own occupation and the Civil Judge is of the opinion that such requirement may be substantially satisfied by the ejecting the tenant or a sub-tenant from a part of the premises and allowing the tenant or the sub-tenant to continue in occupation of the rest of the premises, then if the tenant or the sub-tenant agrees to such occupation, the Civil Judge shall pass a decree and fix the proportionate rent for the portion remaining in the occupation of the tenant or the sub-tenant.

The rent so fixed by the Civil "Judge shall be deemed to be the fair rent.

If the tenant does not agree but the sub-tenant agrees to such occupation, no decree or order for ejectment shall be passed against the sub-tenant who shall become a tenant directly holding under the landlord with effect from the date of the decree or order.

Rule of law relating to notice to be given by the landlord to his tenant before evicting him

Sub-section 4 of Section 6 is the provision for issuing a notice upon the tenant for a period of one month expiring with a month of the tenancy and this sub-section is a mandatory provision with the expression namely, "Notwithstanding anything in any other law for the time being in force", such a notice is sine qua non for instituting a proceeding for eviction before the rent Controller by the landlord against a tenant on any of the ground specified in the various clauses of sub-section 1 of section 6 except clause e which provides for a proceedings for eviction against a tenant where the tenant has given notice to quit but has failed to deliver vacant possession of the premises to the landlord in accordance with such notice.

The manner in which the notice has to be served by landlord to tenant is not provided in Sub-section 4 of Section 6. It only requires that the landlord has to give a notice of one month expiring with the month of tenancy. Since the Act does not provide as to how such a notice has to be served, we have to look to the provision of second part of Section 106 of the Transfer of Property Act under which the mode of the service of notice has been prescribed as:

- Service by Registered Post.
- Personal tender and delivery.
- Tender and delivery to a family member or servant.
- Hanging or affixing when Personal Tender and Delivery as provided under no. 2 and 3 is not practicable.

Non mention of the specific month of the tenancy on the expiry of which tenancy is sought to be determined is not fatal. When the landlord asked the tenant to quit and vacate by the end of the month of tenancy it has been held to be valid notice. **Nagrajmal Baid v. Ram Rathi Devi AIR 1980 NOC 33.**

Exception: Sub Section 5 protects the tenant from eviction for a period of two years from the date of commencement of this Act for recovery of possession of the premises to which the West Bengal Premises Tenancy Act 1956 did apply but the provisions of 1997 Act do not apply. The provision has the overriding effect.

Q. Discuss the provision laid down in West Bengal Premises Tenancy Act, 1997 which imparts the tenant benefit of protection against eviction.

Section 7 of the West Bengal Premises Tenancy Act, 1997 speaks of the provision as to when a tenant can get the benefit of protection against eviction.

On a suit being instituted by the landlord for eviction on any of the grounds referred to in section 6 of this Act, the tenant shall, subject to the provisions of sub-section (2) of this section, pay to the landlord or deposit with the Civil Judge all arrears of rent calculated at the rate at which it was last paid upto the end of the month previous to that in which the payment is made together with the interest at the rate of ten percent Per annum.

Such payment or deposit shall be made within one month of the service of summons on the tenant or where he appears in the suit without the summons being served upon him within one month of his appearance.

The tenant shall thereafter continue to pay the landlord or deposit with the civil judge month by month by the 15th of each succeeding month a sum which is equivalent to the rent at that rate.

If in any suit referred to the provision in sub-section (1) of this section 7, there is any dispute as to the amount of the rent payable by the tenant, the tenant shall, within the specified time, deposit with the Civil Judge the amount admitted by him to be due from him together with an application for the determination of the rent payable. No such deposit shall be accepted unless it is accompanied by an application for the determination of the rent payable.

On receipt of the application, the Civil Judge shall, having regard to the rate at which the rent was last paid and the period for which default may have been made by the tenant, make an order specifying the amount if any due from the tenant.

Such order shall be made by the Civil Judge as soon as possible within a period not exceeding one year.

The tenant shall pay to the landlord the amount so specified in the order. This payment shall be made within one month of the date of such order.

It is provided that having regard to the circumstances of this case, an extension of time may be granted by the Civil Judge only once, and the Period of such extension shall not exceed two months.

If the tenant fails to deposit, or pay the amount within the specified time or within such extended time as may be granted, the Civil Judge shall order the defence against the delivery of possession to be struck out and shall proceed with the hearing of the suit.

If the tenant makes deposit or payment as required by the provision of this section 7, no order for the delivery of possession of the premises to the landlord on the ground of default in payment of rent by the tenant shall be made by the Civil Judge. But the Civil Judge may allow such cost as he may deem fit to the landlord.

It is provided that the tenant shall not be entitled to any relief under the provision of sub-section (4) of this section, if, having obtained such relief once in respect of the premises, he again makes default in payment of rent for four months within a period of twelve months or three successive rental periods where the rent is not payable monthly.

In **Arup Ratan Pal v. Shyam Narayan Singh (2007) 1 Cal LJ 74** it was the fact that the tenant defaulted in payment of arrear of rent and the Court permitted the tenant to deposit the arrears in instalments. The tenant made default in payment of instalments. Again the Court on the prayer of the tenant directed him to deposit the entire arrear at a time. The tenant complied with the order as well.

The High Court affirmed that order of the trial Court. But the landlord filed a petition for striking out the defence. The trial Court reject the petition of the landlord and the High Court upheld the same.

Q. When can the Civil Judge Order the defence against the delivery of the possession of to be struck out? After completion of the building and rebuilding if the landlord refuses to give delivery of possession of the premises to the tenant, what protection is available to the tenant?

Sub Section 1 of Section 11 speaks about the order of the civil Judge against the delivery of possession

Sub Section 1 of Section 11 has to be read with Clause c of Section 6 (1) of the Act. The conjoint reading of these two provisions would indicate that when passing a decree or order of eviction under Clause c of Section 6 (1) on the ground of building or rebuilding or for addition or alterations of the premises in suit the civil judge shall have to specify the period within which the building or rebuilding of or additions to

or alterations of such premises shall be completed. The landlord may also apply before the civil judge to extend such period from time to time for good and sufficient reasons. But the extension cannot be granted for more than two years in the aggregate.

Sub-sections (2) and (3) of section 11 of the West Bengal Premises Tenancy Act, 1997 speaks about the protection available to a tenant if the landlord refuses to give him delivery of possession of the tenanted premises after completion of building or rebuilding.

It is the duty of the landlord to put the tenant to the Possession of such premises or part thereof on the completion of building or rebuilding of, or addition to or alteration of, such Premises.

If the landlord does not put the tenant to the possession, the tenant has right to apply before the Civil Judge put to him to such possession.

The application has to be filed within three months of the date of completion of building or rebuilding of or addition to or alteration of, such premises or part thereof.

On receiving such application, the Civil Judge shall give the landlord an opportunity of hearing and by order directing him to deliver the possession to the tenant.

If the landlord fails or neglects to deliver possession of such premises or such part thereof to the tenant as is specified in such order within the time specified, the Civil Judge shall execute the order and put the tenant in possession of such premises or such part thereof.

In **Amar Prasad Gupta v. Himatlal Jatashankar Daftari (1997) 2 CHN 176**, it was held by the Calcutta High Court that the earlier tenancy subsists and the tenant is legally entitled to be restored to the possession of the area which he occupied earlier.

Q. Write short notes on: (i) Landlord (iii) Controller

Landlord: Under **clause (c) of section 2** of the West Bengal Premises Tenancy Act, 1997; “landlord” includes any person who, for the time being, is receiving, or is entitled to receive, the rent for any premises, whether on his own account or on account of, or on behalf of, or for the benefit of, any other person or as a trustee, guardian or receiver for any other person or who would so receive the rent or be entitled to receive the rent, if the premises were let to a tenant.

A person who is entitled to receive the rent is landlord, whether he received the rent or not and he can file a suit for eviction. **Gulab Bai v. Vijay Ram Tandon (1978) 2 RCJ 243**

Controller: Under **clause (a) of section 2** of the West Bengal Premises Tenancy Act, 1997, “Controller” means a Controller appointed under sub-section (1) of section 38, and includes an Additional Controller or Deputy Controller appointed under sub-section (2) of that section.

The West Bengal Apartment Ownership Act, 1972

Q. Define i) Apartment ii) Common Areas and facilities iii) Owner iv) Promoter
v) Encumbrances against apartments vi) Separate assessment vii) Common profits and
expenses viii) The Association of Apartment ix) Flat

i. Apartment

Under **clause (a) of section 3** of the West Bengal Apartment Ownership Act, 1972 “apartment” means part of a property having a direct exit to a road, street or highway or to a common area leading to such road, street or highway which together with its undivided interest in the common areas and facilities forms an independent residential unit and includes a flat.

ii. Common areas and facilities

Under clause (d) of section 3 of the West Bengal Apartment Ownership Act 1972; common areas and facilities includes —

- (1) The land on which the building is located and all easements rights and appurtenances belonging to the land the building;
- (2) The foundations, columns, girders, beams, supports, main walls, roofs, halls, corridors, lobbies, stairs, stairways, fire-escapes and entrances and exits of the building;
- (3) The basements, cellars, yards, gardens, parking areas, shopping centres, schools, garages, building or apartment vacant or occupied by a tenant or any other person not being an owner, and transferred or proposed to be transferred to the Association of Apartment Owners and storage spaces
- (4) The premises for the lodging of janitors or persons employed for the management of the property;
- (5) Installations of common services, such as, power, light, gas, hot and cold water, heating, refrigeration, air conditioning, sewerage etc.;
- (5) The elevators tanks, pumps, motors, compressors, pipes and ducts and in general all apparatus and installations existing for common use;
- (7) Such other common facilities as may be specially provided for in the Declaration;
- (3) All Other Parts of The property necessary or convenient to its existence, maintenance and safety, or normally in common use.

iii. Owner

Under clause (1a) of section 3 of the West Bengal Apartment Ownership Act, 1972; “Owner” in relation to any property or Part thereof or apartment includes:

- (i) Any person owning such property or part thereof or apartment.
- (ii) Any person deemed to be owning such property or part thereof or apartment.
- (iii) Any promoter.
- (iv) A lessee of such property or part thereof or apartment, where the lease is for a period of thirty years or more.

iv. Promoter

Clause (1) of section 3 of the West Bengal Apartment Ownership Act, 1972 gives its definition.

“Promoter” means a person who constructs, or causes to be constructed, a building on a plot of land for the purpose of transfer of such building by sale, gift or otherwise to any other person or to a company, co-operative society or association of persons, and includes. —

- (i) His assign, if any;
- (ii) The person who constructs, and the person who transfers by sale, gift or otherwise, the building, if the two are different persons; or
- (m) Any board, company, corporation, firm or other association of persons, established by or under any law for the time being in force.

Any person who constructs or causes to be constructed a building is known as promoter.

In law there is no prescribed qualifications to be a promoter. The laws of our country leave the requisite qualification for the promoter.

In general sense, the promoter is a term of a professional art and it comprises a certain level of proficiency in the area of building technology, architecture, planner, laws relating to land, transfer of property, contract, co-operative laws, company laws, fiscal laws, local laws especially on municipal corporation or urban land ceiling or town planning, conveyancing etc.

A person who acts as a promoter shall be deemed to be a builder, contractor, developer, coloniser, town planner to certain extent, estate promoter or by any other name acting under a power of attorney or an authorization of the other person.

v. Encumbrance against apartments.

Section 8 of the West Bengal Apartment Ownership Act, 1972 lays down the provisions as to encumbrance against apartments-

No encumbrance of any nature shall be created against the property during the period such property remains subject to this Act.

During such period, the encumbrance may be created only against each apartment and the percentage of undivided interest in the common areas and facilities which is appurtenant to such apartment.

It is in the same manner as in relation to any other separate parcel of property subject to individual ownership.

vi. Separate assessment:

Under **section 14** of the West Bengal Apartment Ownership Act, 1972 it is stated that notwithstanding anything to the contrary in any other law for the time being in force, each apartment of the property including its percentage of undivided interest in the common areas and facilities thereof the owner of which does not own any other apartment in such property shall be deemed to be a separate unit for the purpose of the assessment of municipal rates and taxes.

vii. Common profits & expenses

Under **clause (e) of section 3** of the West Bengal Apartment Ownership Act, 1972; "Common expenses" means expenses of administration, maintenance, repair or replacement of the common areas and facilities and all other sums assessed against the apartment owners by the Association of Apartment Owners.

Under **clause (f) of section 3** of the West Bengal Apartment Ownership Act, 1972; "Common profit" means the balance of all income, rents, profits and revenues from the common areas and facilities remaining after the deduction of the common expenses.

viii. Association of Apartment Owners

Under **clause (b) of section 3** of the West Bengal Apartment Ownership Act, 1972 "Association of Apartment Owners" means the association competent to contract in its own name and formed in accordance with the provisions made in the bye-law.

Apartment-owner is defined as the person or persons owning an apartment and an undivided interest in the common areas and facilities in the percentage specified and established in the Declaration under Act.

Association of Apartment Owners is a body of all the apartment owners acting as a group in accordance with the bye laws and Declaration.

ix. Flat

Under clause (a) of section 2 of the Maharashtra Ownership Flats (Regulation of the Promotion of Construction, Sale, Management and Transfer) Act 1963; "Flats" means a separate and self-contained set of premises used or intended to be used for residence or office or show-room or shop or godown

As per the Explanation to clause (a) of section 3 of the West Bengal Apartment Ownership Act, the term "Flat" shall mean a separate residential unit, whether self-contained or not, used or intended to be used for any of the purposes, referred to in sub-clauses (a) to (i) of clause (2) of section 390 of the Calcutta Municipal Corporation Act, 1980.

Thor term "Flat" as per the explanation to clause (a) to section 3 has been modified by the West Bengal Apartment Ownership (Amendment) Act, 2008.

The term "flat" shall mean a separate set of premises, whether self-contained or not, used or intended to be used for residence or office or show-room or shop or godown or garage or any other commercial purposes forming part of a building or for any of the purposes referred to in sub-clauses (a) to (i) of clause (2) of section 390 of the Kolkata Municipal Corporation Act, 1980 (West Bengal Act LIX of 1980).

Q. An apartment may be considered to be transferred and heritable property"- Explain. Benamdar of an apartment to be deemed to be the real owner. Discuss

An apartment to be transferable and heritable property

Section 4 of the West Bengal Apartment Ownership Act, 1972 speaks of an apartment to be transferable and heritable property.

Each apartment owner shall be entitled to the exclusive ownership and possession of his apartment. An apartment together with its undivided interest in the common areas and facilities shall constitute heritable and transferable immovable property within the meaning of any law for the time being in force.

It is provided that no apartment and the percentage of undivided interest in the common areas and facilities appurtenant to such apartment shall be partitioned or subdivided.

Whatever contained in the Transfer of Property Act, 1882 the person acquiring by purchase or by inheritance, or taking lease of an apartment shall execute and register an instrument complying with the bye-laws and with the covenant, conditions and restrictions set forth in the Declaration under this Act

ix. Benamdar of an apartment to be deemed to be the real owner thereof

Under Section 4A, it is provided that where an apartment is transferred to one person for a consideration paid or provided by another person for his own benefit, the transferee shall be deemed to be the real owner of such apartment notwithstanding anything in the Transfer of Property Act, 1882, or in the Indian Trust Act, 1882, or in any other law for the time being in force, be deemed to be the real owner of such apartment, and no court shall entertain any claim of the person, paying or providing the consideration, for title in such apartment on the ground that he did not intend to pay or provide such consideration for the benefit of the transferee and that the transferee is his benamdar, or any other ground.

Section 4A of the West Bengal Apartment Ownership Act, 1972 speaks of the provision as to Benamdar of an apartment to be deemed to be the real owner.

Where an apartment is transferred to one person for a consideration paid or provided by another person for his own benefit, the transferee shall be deemed to be the real owner of such apartment notwithstanding anything in the Transfer of Property Act, 1882, or in the Indian Trusts Act, 1882, or in any other law for the time being in force.

No court shall entertain any claim of the person, paying or providing the consideration for title in such apartment on the ground that he did not intend to pay or provide such consideration for the benefit of the transferee and that the transferee is his benamdar, or on any other ground.

It can be noted that the Benami Transactions (Prohibition) Act, 1988 makes a “Benami” transaction illegal.

It can also be noted that in case of Benami Transfer, the person in whose favour and name the property is held, will become a real owner.

Therefore, section 4A of the West Bengal Apartment Ownership Act, 1972 is a corollary to the provisions laid down in the Benami Transactions (Prohibition) Act, 1988.

The Supreme Court in **Mithilesh Kumari v. Prem Behari Khare AIR 1988 SC 1247**, held that the operation of the Benami Transactions (Prohibition) Act, 1988 is retrospective.

Q. Define the term 'Declaration' under the W.B. apartment ownership Act 1972. What are the contents of a Declaration? Is a Declaration compulsorily registerable? Can a Declaration be amended? How many copies of Declaration are to be submitted before the Competent Authority?

Under clause (h) of section 3 of the West Bengal Apartment Ownership Act, 1972, "Declaration" means the instrument by which the property is submitted to the provisions of this Act, as herein after provided.

"Declaration" is detailed in the instrument by which the property is submitted to the provisions of the apartment ownership law and such declaration may be lawfully amended from time to time-

Section 10 of the West Bengal Apartment Ownership Act, 1972 stresses the contents of declaration.

The Declaration referred to in the provision of section 2 of this Act shall be submitted in such form and in such manner, as may be prescribed and shall contain the following particulars, namely.

- (a) Description of the property.
- (b) Nature of interest of the owner or owners in the property.
- (c) Existing encumbrance, if any, affecting the property.
- (d) Description of each apartment containing its location, actual built up area, number of rooms, immediate common area to which it has access, and any other data necessary for its proper identification.
- (e) Description of the common areas and facilities.
- (f) Description of the common and facilities, if any, stating to which apartments their use is reserved.
- (g) Value of the property and each apartment, and the percentage of undivided interest in the common areas and facilities appertaining to each apartment and its owner -
- (h) Such other particulars as may be prescribed

The above declaration, under the provision laid down in sub-Section (i) of this section 10, may be amended under such circumstances and in such manner, as may be prescribed

Declaration is made by the sole owner or owners of the property comprising a building containing apartment together with the common areas and facilities mainly for residential purpose.

Declaration is made in the prescribed form under the West Bengal Apartment Rules, 1974 i.e., FORM A, disclosing the true fact of the property owned, and submitted before the Competent Authority for the purpose of acknowledgement.

The Declaration can be amended in accordance with the provision of section 10A of this Act and submitted to the Competent Authority. The application for amendment of Declaration is made in the prescribed Form i.e., FORM B, disclosing the circumstances where any bonafide mistake in Declaration

or any alteration in the description of the property to which such Declaration relates or an amendment is necessary for carrying the purposes of this Act.

Section 12 recognises three kinds of instruments to be compulsorily registerable. Those are:

- (i) The instrument relating to the declaration or any amendment thereto referred to in section 10.
- (ii) The instrument relating to the withdrawal of a property from the provisions of this Act referred to in section 11.
- (iii) The instrument relating to the apartment acquired by purchase or by inheritance referred to in sub-section (3) of section 4 of this Act.

Q. Under what circumstances the Competent Authority may by order remove the Manager or supersede the Board of Managers of the Association of Apartment Owners?

Section 16B of the West Bengal Apartment Ownership Act, 1972, speaks of the control and supersession.

The rights of the Association of Apartment Owners are exercised by its Manager or the Board of Managers.

If the Managers or the Board of Managers fails to perform its functions under this Act or the bye-laws. The Competent Authority may give to it such directions as that Authority considers fit.

if the Competent Authority is of the opinion that the function of the Manager or the Board of Managers has become detrimental to the interest of the Association of Apartment Owners or of the apartment owners or is against the public interest, the Competent Authority may give a notice to the Manager or the Board of Managers, as the case may be, why he should not be removed, or, as the case may be it should not be superseded.

If the reply of the Manager or the Board of Managers is not considered satisfactory, the Competent Authority may, by order, remove the Manager or supersede the Board of Managers, as the case may be, and appoint any member from amongst the members of the concerned Association of Apartment Owners or any employee of the State Government or any other person who is fit as administrator to perform the functions of the Manager or the Board of Managers, as the case may be, for a period not exceeding six months.

it is provided that the Competent Authority may, if it considers necessary so to do, by order, extend the period of removal of the Manager or supersession of the Board of Managers, as the case may be, for a further period not exceeding six months at a time.

But the aggregate period of removal or supersession, as the case may be, shall not exceed three years.

Q. What do you mean by bye-laws? What are the content of Bye-laws? State the Grounds on which bye-laws may be treated as Ultra Vires.

Bye-laws

Section 6 of the West Bengal Apartment Ownership Act, 1972 provides for the compliance with bye- laws, covenants, conditions and restrictions.

Each apartment owner shall comply strictly with the buy-laws and the covenants, conditions and restrictions set forth in the Declaration.

If such apartment owner fails to comply with any of the bye-laws, covenants, conditions and restrictions, it shall be a ground for an action to recover damages; or it shall be for other relief or reliefs at the instance of the Manager or the Board of Managers on behalf of the Association of Apartment Owners or in a proper case, by an aggrieved apartment owner.

Section 13 of the West Bengal Apartment Ownership Act, 1972 provides for the bye-laws.

Every property shall be administered in accordance with such bye-laws as may be framed by the Competent Authority.

The bye - laws shall be framed with the prior approval of the State Government. The bye-laws shall provide for the following amongst other matters, namely:

- (a) The manner in which the Association of Apartment Owners is to be formed.
 - (i) The election of a Board of Manager from among the apartment owners.
 - (ii) The number of persons constituting the Board.
 - (iii) The number of members of such Board to retire annually.
 - (iv) The powers and duties of the Board
 - (v) The honorarium, if any, of the members of the Board
 - (vi) The method of removal from office of members of the Board
 - (vii) The powers of the Board to engage the services of a Secretary or Manager.
 - (viii) The delegation of powers and duties to such secretary or manager.
- (b) Method of calling meetings of the apartment owners and the number to constitute a quorum.
- (c) Election of a President who shall preside over the meetings of the Board and of the Association of Apartment Owners.

- (d) Maintenance, repairs and replacement of the common areas and facilities and payment therefore.
- (e) Manner of collecting share of the common expenses from the apartment owner.
- (f) Any other matter considered to be necessary for the administration of the property.

Bye-laws when those may be treated as ultra-vires

Bye-laws are the rules or administrative provisions adopted by an authority or organization or association for their internal governance and external dealings.

Bye-laws are the form of subordinate legislation as being made by a competent Authority with the prior approval of the State Government.

The West Bengal Apartment Ownership Act empowers the Competent Authority to frame Bye-laws. The Bye-laws shall provide the regulations as to manner and method of formation of Association of Apartment Owners, election of Board of Managers calling meeting, election of President and other matter considered to be necessary for the administration of the property in relation to apartment.

These are certain circumstances when the Bye-laws may be treated as ultra-vires.

- a. if the Bye-laws are not made, sanctioned and published in the manner prescribed by the statute which authorises the making of them.
- b. If the Bye-laws are repugnant to the statute under which they are made.
- c. If the Bye-laws are uncertain.
- d. If the Bye-laws are unreasonable.
- e. If the Bye-laws are repugnant to the laws of the country.

Bye-laws shall be intra-vires the authority who makes it, not repugnant to the law to the country, certain in its terms, positive and reasonable — **Commissioners of Calcutta Port v. Asit Ftnjan AIR 1962 Cal 530.**

The Bye-law is not valid if it is not in pursuance of the authority where the local board has been authorised to make bye-laws with respect to level, width and construction of new streets. — **Brown v. Holyhead Local Board (1862) 32 L.I. Ex 25.**